some bad dudes'—hardly a shining commitment to ensuring that justice is done and is seen to be done.[2]

Compare that to Lord Steyn, who served as a senior judge in the UK throughout the 1990s. An implacable critic of the claim to immunity from prosecution of the former Chilean head of state Augusto Pinochet in 1998, he reserved his most fierce ire for the detention of prisoners at Camp X-ray at Guantánamo Bay. He was forced by the UK government to stand down and not be available for the hearings in the House of Lords on the indefinite detention of terrorist suspects in 2004. When he died, the Times of London described Lord Steyn in its obituary as '[o]ne of the most liberal judges ever to enter the House of Lords', who had 'branded the US regime at Guantanamo Bay "a monstrous failure of justice" and declared that the system of trial by military tribunal was no more than a "kangaroo court" that "makes a mockery of justice"'. Such was the impact of this statement, in giving the Twenty-Seventh F.A. Mann Lecture on 25 November 2003 at Lincoln's Inn, that '[i]n 2004 the senior law lord, Lord Bingham of Cornhill, was asked not to include Steyn on the nine-judge panel to decide on the legality of detaining foreign terror suspects without trial' and 'Steyn agreed to stand down, but later told The Times that the government had raised a "truly flimsy objection"'. He was, as a law lord, 'one of the most outspoken – so much so that the New Labour government broke with precedent to block his appointment to a House of Lords judicial committee'. Lord Steyn was described by Anthony Lester QC as a champion of human rights law who had 'transformed our country into a rights-based democracy' such that '[h]e's going to be extraordinarily difficult to replace'.[3] There is, after all, a different way of doing trials that have a bearing on national security and public order.

Second, it is important that those in the subcontinent who suffered from coercive colonialism in all its multifarious forms take a stand against its continuance and repetition. The quest for transitional justice, in the sense of the redress of the legacies of human rights abuses through avenues of reparation programmes and truth commissions, does not begin and end with an apology from a former imperial power alone, particularly if one bears in